PARLIAMENT OF CEYLON

5th Session 1964-65





Motor Traffic (Amendment) Act, No. 39 of 1964

Date of Assent: November 12, 1964

Printed on the Orders of Government

Printed at the GOVERNMENT PRESS, CEYLON. To be purchased at the GOVERNMENT PUBLICATIONS BUREAU, COLOMBO

Annual Subscription (including Bills) Rs. 30 (Local), Rs. 40 (Foreign), payable to the SUPERINTENDENT, GOVERNMENT PUBLICATIONS BUREAU, P. O. BOX 500, COLOMBO 1, before 20th December each year in respect of the year following. Late subscriptions will be accepted on the condition that Bills issued before the date of payment will not be supplied.

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L. D.—O. 56/61.

AN ACT TO AMEND THE MOTOR TRAFFIC ACT.

Chapter 203, Vol. VII, Page 434.

[Date of Assent: November 12, 1964]

BE it enacted by the Queen's Most Excellent Majesty, by and with the advice and consent of the Senate and the House of Representatives of Ceylon in this present Parliament assembled, and by the authority of the same, as follows:—

Short title.

1. This Act may be cited as the Motor Traffic (Amendment) Act, No. 39 of 1964.

Amendment of section 125 of Chapter 203.

2. Section 125 of the Motor Traffic Act, hereinafter referred to as the "principal Act", is hereby amended in sub-section (3) thereof, by the substitution, for the word "Ordinance.", of the words "Ordinance unless the Commissioner, after considering any report made in respect of that person by the Inspector-General of Police, is satisfied that that person is a fit and proper person to be a holder of such a licence.".

Amendment of section 164 of the principal Act.

3. Section 164 of the principal Act is hereby amended as follows:—

(1) in sub-section (1) thereof—

(*a*) in paragraph (*b*) by the substitution, for the word "reconstruction.", of the words "reconstruction; or";

(*b*) by the insertion, immediately after paragraph (*b*), of the following paragraph:—

"(*c*) by order of the Ceylon Transport Board for the purpose of indicating—

(i) places set apart for the parking of omnibuses and hiring cars belonging to such Board; and

(ii) stopping places for omnibuses belonging to such Board."; and

(2) in sub-section (4) of that section, by the substitution, for the word "Department", wherever that word occurs in that sub-section, of the words "Department or the Ceylon Transport Board".

Amendment of section 185 of the principal Act.

4. Section 185 of the principal Act is hereby amended as follows:—

(*a*) in sub-section (1) of that section, by the substitution, for the words " A licensed conductor ", of the words and figure " Save as is otherwise provided in sub-section (3), a licensed conductor "; and

(*b*) by the insertion, immediately after sub-section (2) of that section, of the following new sub-section:—

" (3) The provisions of sub-section (1) shall not apply in relation to an omnibus of the Ceylon Transport Board at any time when the omnibus is being used for plying between two fixed places without stopping at any other place for the purpose of picking up or setting down passengers.".

Amendment of section 186 of the principal Act.

5. Section 186 of the principal Act is hereby amended as follows:—

(*a*) in sub-section (1) of that section, by the substitution, for the words " The conductor ", of the words and figure " Save as is otherwise provided in sub-section (3), the conductor "; and

(*b*) by the insertion, immediately after sub-section (2) of that section, of the following new sub-section:—

" (3) The provisions of sub-section (1) shall not apply in relation to an omnibus of the Ceylon Transport Board at any time when the omnibus is being used for plying between two fixed places without stopping at any other place for the purpose of picking up or setting down passengers.".

Amendment of section 240 of the principal Act.

6. Section 240 of the principal Act is hereby amended by the insertion, immediately after the definition of " certificate of security ", of the following new definition:—

' " Ceylon Transport Board " means the Ceylon Transport Board established under the Motor Transport Act, No. 48 of 1957;'.

7. The amendments made in the principal Act by paragraph (1) of section 3, and by section 6, of this Act shall be deemed to have come into force on October 31, 1957.

Retrospective effect of certain amendments.